WAKE COUNTY, NC
TAMMY L. BRUNNER
REGISTER OF DEEDS
PRESENTED & RECORDED ON
05-24-2023 AT 15:27:11
STATE OF NC REAL ESTATE
EXCISE TAX: $240.00
BOOK: 019342 PAGE: 01322 - 01329

Instrument Prepared By:	Raleigh-City Attorney's Office
Brief Description for Index:	1210 Capital Boulevard
Parcel Identifier:	0027812
Project Name:	Upper Pigeon House Interceptor Replacement
Mail After Recording To:	City Real Estate Office (SG) Post Office Box 590 Raleigh, North Carolina 27602

Revenue: $240.00

STATE OF NORTH CAROLINA

COUNTY OF WAKE

DEED OF EASEMENT
WITH GENERAL WARRANTY FOR
SANITARY SEWER EASEMENT
TEMPORARY CONSTRUCTION EASEMENT

THIS DEED OF EASEMENT is made and executed this 10th day of May, 2023, by Moghadass, Inc., a North Carolina corporation, with a mailing address of 5040 Isabella Cannon Dr., Raleigh, NC 27612-4804, hereinafter referred to as the "Grantors", to the City of Raleigh, hereinafter referred to as the "City", with a mailing address of 222 W. Hargett Street, Raleigh, NC, 27601.

WHEREAS, the Grantors are the Owners of the land(s) hereinafter described, and have agreed to convey to the City, according to the terms set forth below, the easement(s) hereinafter described;

The designation "Grantors" as used herein shall include the singular and plural, as required, and the masculine and neuter gender, as appropriate.

NOW, THEREFORE, for valuable consideration paid to the Grantors, receipt of which is hereby acknowledged, the Grantors have bargained and sold, and do hereby grant, sell and convey unto the City, its successors and assigns, those rights-of-way, privileges, and Easements enumerated and described hereinbelow, and as more particularly identified and described in Exhibit A, attached, as follows:

1 **SANITARY SEWER EASEMENT**

An easement to construct, install, improve, remove, replace, inspect, repair, maintain and use a system of pipelines or mains for public sanitary sewer purposes, together with all appurtenant facilities and equipment necessary or convenient thereto.

Further Specific Terms and Conditions applicable to the Sanitary Sewer easement are as follows:

a) The City is authorized to remove and keep removed from the easement all trees, vegetation, and other obstructions as necessary to maintain, repair or protect the sanitary sewer line or lines and

Submitted electronically by The City of Raleigh in compliance with North Carolina statutes governing recordable documents and the terms of the submitter agreement with the Wake County Register of Deeds.

appurtenances. This easement shall not prohibit the Grantors from: (1) constructing, maintaining, and using the easement area for paved or unpaved drives and parking areas; and (2) planting and maintaining shallow-rooted ground cover material within the easement area, all subject to applicable law; provided all risk of damage to any such improvements caused by maintenance or repair of the sewer line and appurtenant facilities shall be with the Grantors.

b) Nothing herein shall be construed to grant to the City any right of access through or over any property of the Grantors other than that lying within the easement herein described and conveyed.

c) The Grantors shall retain fee simple ownership of the property through and over which this easement passes; provided however, no use may be made of the property which interferes or is inconsistent with the City's full, reasonable use of the easement for sanitary sewer purposes.

d) Following the installation of a sanitary sewer main and appurtenant facilities within the easement, the City shall re-grade, mulch, and re-seed, or otherwise restore, all disturbed areas, in accordance with generally accepted landscaping and engineering practices.

2 TEMPORARY CONSTRUCTION EASEMENT

A temporary easement for purposes reasonably necessary and incidental to the construction of public infrastructure improvements (such as streets, sidewalks, slopes, greenway trail, water, sewer and storm drainage facilities), such temporary construction purposes including the stockpiling of materials, the movement and storage of vehicles and equipment, construction staging, clearing, the grading of soil and other like material, the repair, reconstruction and reconnection of a private driveway or driveways onto adjacent public street right-of-way, and similar purposes.

Further specific terms and conditions applicable to the Temporary Construction Easement are as follows:

a) Following construction of the public infrastructure project, the City shall re-grade, mulch, and re-seed, or otherwise restore, the temporary easement area substantially to its prior use and condition, in accordance with generally accepted landscaping and engineering practices.

b) The City's use of and activities within the above-described easement area [including grading, clearing, stabilization, and restoration under subparagraph (a)] shall substantially conform with official plans and specifications for the Upper Pigeon House Interceptor Replacement Project, prepared by Dewberry, entitled "Upper Pigeon House Interceptor Replacement", maintained in the offices of the City of Raleigh Public Utilities Department.

c) This easement shall terminate upon final completion of the project referenced above. Thereafter, the Grantors may make and enjoy all lawful uses of their property.

THE PROPERTY INTEREST HEREIN DESCRIBED AND CONVEYED does not include a primary residence.

TO HAVE AND TO HOLD the above-described permanent easements, running with the land, for the respective purposes enumerated above, unto the City of Raleigh, its successors and assigns, in perpetuity.

TO HAVE AND TO HOLD the above-described temporary easements, while in effect, unto the City,

its successors and assigns.

The Grantors hereby, for themselves, their heirs, successors, and assigns, hereby warrant and covenant that they are the owners of the property described in Exhibit A; that they have the right to grant these easements; that the same are free from encumbrances except as may be hereinafter stated; and that they will warrant and defend the title to the same against lawful claims of all persons whomsoever.

(The balance of this page is intended to be blank.)

IN WITNESS WHEREOF, the Grantor has caused this instrument to be signed in its corporate name by its ~~(Vice)~~ President, by order of its Board of Directors, this the day and year first above written.

Moghadass, Inc., a North Carolina corporation

By: _____
~~(Vice)~~ President

STATE OF NC

COUNTY OF WAKE

I certify that the following **person(s)** personally appeared before me this day, each acknowledging to me that he or she signed the foregoing document for the purpose stated therein and in the capacity indicated: MASOUD MOGHADASS.
(print names of those appeared)

Witness my hand and official seal, this 10 day of MAY 2023.

_____
Notary Public

VITALIYA SCHUMACHER
Notary's printed or typed name

My Commission Expires: DECEMBER 13

VITALIYA SCHUMACHER NOTARY PUBLIC WAKE COUNTY, NC My Commission Expires 12-13-2024

ATTACHMENT

SUBORDINATION

TBVAT, LLC, as Trustee, and Paragon Bank, a Division of TowneBank, as Beneficiary, under that certain Deed of Trust recorded in Book 17175, Page 208, Wake County Registry, North Carolina, join in this Deed of Easement for the sole purpose of expressing their consent hereto and of binding, subjecting and subordinating said Deed of Trust and their interest in the Subject Property to the terms, covenants and conditions of this Deed of Easement.

TRUSTEE:

TBVAT, LLC

By: _____ (SEAL)
Name: Corey Simpson
Its: SVP (Title)

BENEFICIARY:

Paragon Bank, a Division of TowneBank

By: _____ (SEAL)
Name: Craig Powell
Its: SVP-CBO (Title)

[Notary acknowledgments for the Trustee and Lender follow this page.]

NORTH CAROLINA

WAKE COUNTY

TRUSTEE
ACKNOWLEDGMENT

I certify that the following person personally appeared before me this day and acknowledged to me that he or she voluntarily signed the foregoing document for the purpose stated therein and in the capacity indicated: Corey Simpson
(Print name of signatory in blank)

Date: 5/16/23

My Commission Expires:

12/05/23

[Affix Notary Stamp or Seal]

LUCY KIMBALL BEAM Notary Public Wake County My Comm. Exp. 12-05-2023 NORTH CAROLINA

Lucy Kimball Beam
Notary Public
Print Name: Lucy Kimball Beam

NORTH CAROLINA

WAKE COUNTY

BENEFICIARY
ACKNOWLEDGMENT

I certify that the following person personally appeared before me this day and acknowledged to me that he or she voluntarily signed the foregoing document for the purpose stated therein and in the capacity indicated: Craig Poms
(Print name of signatory in blank)

Date: 5/17/23

My Commission Expires:

10/14/24

[Affix Notary Stamp or Seal]

SYDNEY MORGAN
NOTARY PUBLIC
DURHAM COUNTY, N.C.

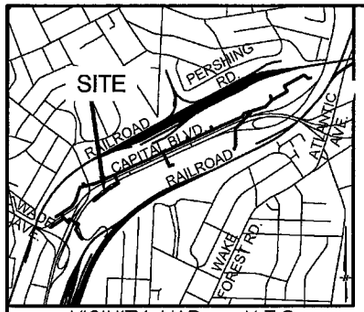
Sydney Morgan
Notary Public
Print Name: Sydney Morgan

PROPERTY DESCRIPTION APPROVED:

- ☐ Engineering Services Director/Designee
- ☒ Assistant Public Utilities Department Director G.L. 5/24/2023
- ☐ Parks, Recreation & Cultural Resources Director
- ☐ Transportation Department Director /Designee

CITY ATTORNEY'S OFFICE
APPROVED AS TO FORM:

- ☐ BP
- ☐ BW
- ☐ BHW
- ☐ CS
- ☒ JR G.L. 5/24/2023
- ☐ KK



VICINITY MAP – N.T.S.

LEGEND

RRF	RAILROAD SPIKE FOUND
NLF	NAIL FOUND
PKF	PK NAIL FOUND
IPF	IRON PIPE FOUND
IRF	IRON ROD FOUND
MONF	MONUMENT FOUND
	CALCULATED POINT
	SURVEYED LINE
	NON SURVEYED LINE
	SANITARY SEWER EASEMENT
	TEMPORARY CONSTRUCTION EASEMENT
	EGRESS/INGRESS EASEMENT
	EASEMENT TO BE ABANDONED

I, ADAM C. HALES, CERTIFY THAT THIS PLAT WAS DRAWN UNDER MY SUPERVISION FROM AN ACTUAL SURVEY MADE UNDER MY SUPERVISION, USING REFERENCES SHOWN HEREON; THAT THE BOUNDARIES NOT SURVEYED ARE CLEARLY INDICATED AS DRAWN FROM INFORMATION FOUND IN REFERENCES SHOWN HEREON; THAT THE RATIO OF PRECISION OR POSITIONAL ACCURACY AS CALCULATED IS 1:10,000 OR HIGHER;

WITNESS MY ORIGINAL SIGNATURE, REGISTRATION LICENSE NUMBER AND SEAL THIS 29TH DAY OF MARCH, A.D., 2022

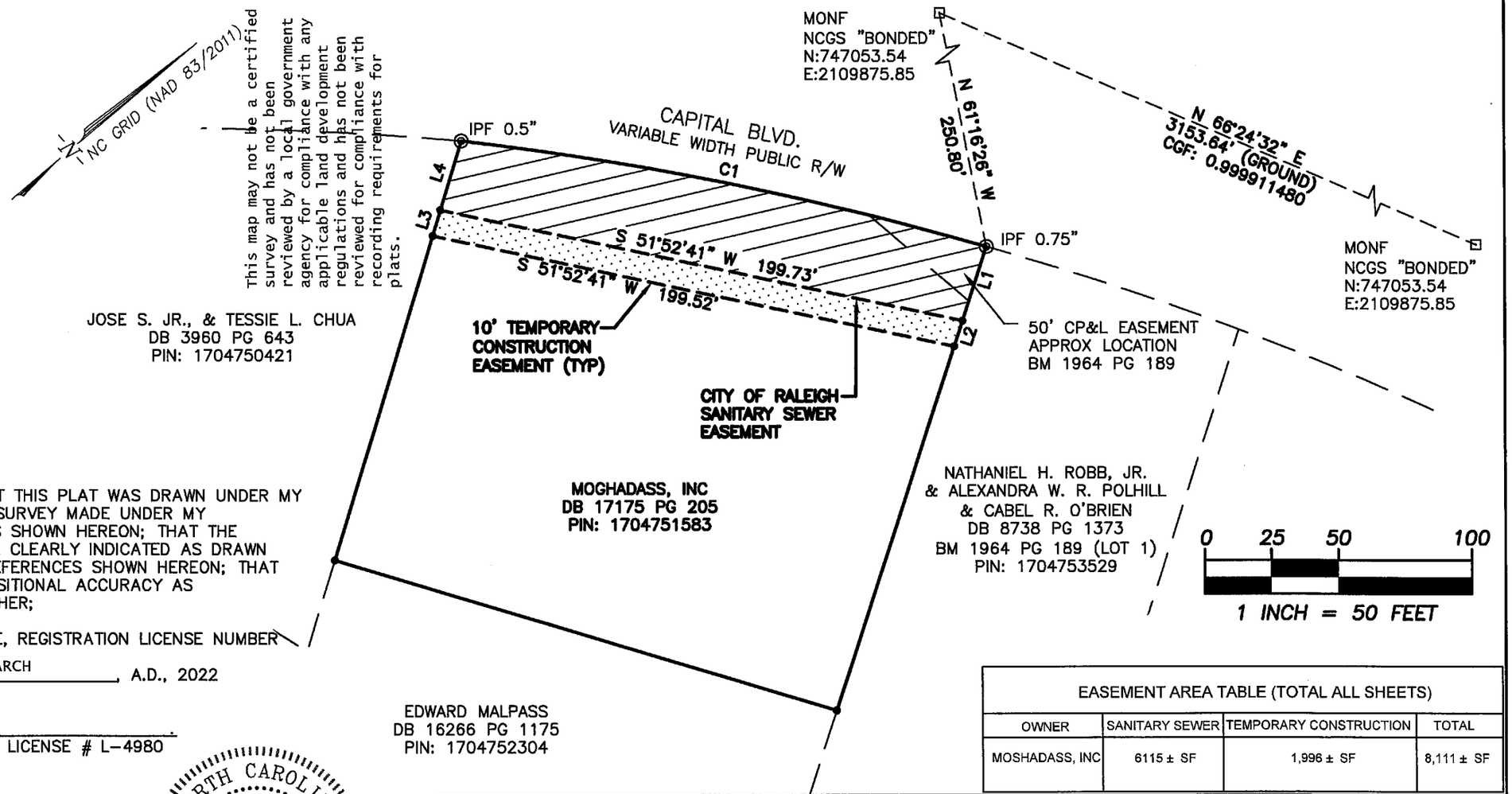
DocuSigned by:
Adam Hales
E91DDBC1103E45D...

PROFESSIONAL LAND SURVEYOR LICENSE # L-4980

NORTH CAROLINA PROFESSIONAL SEAL L-4980 LAND SURVEYOR ADAM C. HALES

NC GRID (NAD 83/2011)

This map may not be a certified survey and has not been reviewed by a local government agency for compliance with any applicable land development regulations and has not been reviewed for compliance with recording requirements for plats.



EASEMENT AREA TABLE (TOTAL ALL SHEETS)			
OWNER	SANITARY SEWER	TEMPORARY CONSTRUCTION	TOTAL
MOSHADASS, INC	6115 ± SF	1,996 ± SF	8,111 ± SF

LINE TABLE		
LINE	BEARING	DISTANCE
L1	S 31°53'43" E	28.94'
L2	S 31°53'43" E	10.06'
L3	N 33°02'27" W	10.04'
L4	N 33°02'27" W	26.87'

CURVE TABLE						
CURVE	RADIUS	ARC LENGTH	CHORD LENGTH	CHORD BEARING	DELTA ANGLE	TANGENT
C1	1200.30'	200.73'	200.49'	N 51°18'19" E	9°34'54"	100.60'

EASEMENT EXHIBIT FOR AQUISITION PURPOSES:

UPPER PIGEON HOUSE INTERCEPTOR REPLACEMENT

PROPERTY OF:

MOGHADASS, INC

CITY OF RALEIGH TOWNSHIP – WAKE COUNTY – NORTH CAROLINA – MARCH 2022

Dewberry®
Dewberry Engineers Inc.
2610 WYCLIFF ROAD
SUITE 410
RALEIGH, NC 27607
PHONE: 919.881.9939
FAX: 919.881.9923
NCBELS # F-0929

NOTES:
1. HORIZONTAL CONTROL IS NORTH CAROLINA STATE PLANE COORDINATE SYSTEM NAD83, ESTABLISHED BY GPS OBSERVATIONS AND COMPUTED USING NORTH CAROLINA GEODETIC SOCIETY VIRTUAL REFERENCE STATION SERVICE (VRS).
2. AREA COMPUTED BY COORDINATE METHOD.
3. ALL DISTANCES SHOWN ON THIS EXHIBIT ARE GROUND DISTANCES UNLESS OTHERWISE NOTED.
4. REFERENCES SHOWN HEREON.
5. DASHED LINES ARE NOT SURVEYED.
6. THE INFORMATION CONTAINED HEREON IS SUBJECT TO THE FINDINGS OF A COMPLETE AND ACCURATE OPINION OF TITLE, AND TO THOSE EXCEPTIONS AND EASEMENTS OF RECORD, IF ANY, NOTED THEREON.

PROJECT #: 50097464

Exhibit A

BK019342PG01329